Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Friday, August 15, 2025

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower
Regrets:	Regional Councillor	J. Dies

1. **Call to Order & Acknowledgement of Traditional Treaty Lands**

   Mayor Collier called the meeting to order at 1:02 p.m. and acknowledged traditional treaty lands.

2. **Disclosure of Pecuniary Interest**

   There were no disclosures of pecuniary interest.

3. **Authority to Hold a Closed Meeting and Related In-Camera Session**

   Moved by: R. Tyler Morin
   Seconded by: M. Crawford

   That Council convene to a Closed Session pursuant to Section 239 (2) of the Municipal Act, 2001, as amended:

   - To discuss a matter pertaining to a trade secret or scientific, technical, commercial, financial or labour relations information, supplied in confidence to the municipality or local board, which, if disclosed, could reasonably be expected to prejudice significantly the competitive position or interfere significantly with the contractual or other negotiations of a person, group of persons, or organization negotiations [Sec. 239 (2) (i), Municipal Act, 2001, as amended].

   In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Tyler Morin, Councillor Henry, Regional Councillor Lee, Councillor Bower

   Opposed: None

   CARRIED

Open Meeting (1:21 p.m.)

Council recessed at 1:22 p.m.

Council resumed at 1:25 p.m.

3.1. **CAO-2025-02: Elexicon Memorandum of Understanding and Related Documents**

Moved by: S. Lee
Seconded by: R. Tyler Morin

1. That the CAO, as the Shareholder Representative, be directed to approve and execute the Memorandum of Understanding (ATT-1), including proposed amendments to the Unanimous Shareholders Agreement (ATT-2), Elexicon's

By-laws (ATT-3), and Elexicon's Articles of Incorporation (ATT-4), and any related documentation necessary to give effect thereto, on behalf of the Municipality, in a form substantially attached hereto, and in a form satisfactory to CAO.

2. Notwithstanding Clause 1, the CAO is hereby specifically authorized to approve a Memorandum of Understanding and related documents that are amended to reflect a scenario where only 4 of the 5 shareholders agree to convert their promissory notes to equity, provided they are in a form satisfactory to the CAO.

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Tyler Morin, Councillor Henry, Regional Councillor Lee, Councillor Bower

Opposed: None

CARRIED

4. Confirming By-Law

Moved by: L. Bower
Seconded by: R. Tyler Morin

That By-law number 66-2025 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on August 15, 2025 be read a first, second and third time and passed.

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Tyler Morin, Councillor Henry, Regional Councillor Lee, Councillor Bower

Opposed: None

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: N. Henry

That the August 15, 2025 meeting of the Council of the Town of Ajax be adjourned (1:28 p.m.)

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Tyler Morin, Councillor Henry, Regional Councillor Lee, Councillor Bower

Opposed: None

CARRIED

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Mayor and CEO

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Clerk